

complaint

Mr and Mrs M are unhappy that Royal & Sun Alliance Insurance Plc (RSA) won't pay out for storm damage to their roof under their home insurance policy.

background

Mr and Mrs M made a claim for storm damage to their roof. Eventually experts were appointed by RSA to inspect and validate the claim. Experts said damage had occurred a long time before and that RSA's position had been prejudiced as the damage had got worse over time. The claim was declined. Mr and Mrs M said a claim had been made many months before but no claim forms were being sent by RSA and it had declined the claim over the phone.

Mr M said he had been abroad and that an agreement with a neighbour had meant works had to take place on both properties at the same time to get a discount. A further surveying expert inspected and reported that *"the damage to the main roof is not consistent with any one off insurable peril."* Also he said *"found no missing or dislodged slates or tiles and all lead flashing appears to be in a good state of repair...Although the recent weather conditions have highlighted the problem; the roof has been deteriorating over some years"* Unhappy with this Mr and Mrs M brought their complaint to this service.

Our adjudicator didn't uphold the complaint. He felt it was clear that RSA's position had been prejudiced by the delay but more importantly the damage wasn't consistent with storm damage and it wasn't the dominant cause.

Mr and Mrs M didn't accept this and asked for their complaint to be passed to an ombudsman for a final decision.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

This service has a standard approach to storm complaints. We ask three questions:

- was there a storm?
- was the damage typical of that caused by a storm?
- was the storm the dominant and effective cause of the damage?

If the answer is *"no"* to any of these questions then we consider it reasonable for an insurer to decide not to deal with the claim.

Regarding the first question there has been quite a bit of debate about when the damage first occurred - no specific date can be pinpointed. However, based on the overall records I think it's safe to say that storms did occur.

On question two Mr and Mrs M's contractor said that it was storm damage. But two experts appointed by RSA didn't agree. The second said that there were no signs that a one off insured event had caused it. They also pointed out that the roof had been deteriorating for a number of years. So the answer to questions two and three is *"no"*. Based on this I find that RSA acted reasonably when it declined the claim.

I note that there was an issue around the claim being made earlier and the possible prejudice that RSA suffered. I accept that the damage may have worsened over time but as I don't accept that storm damage occurred I don't need to make a finding on this point.

Mr and Mrs M have said that their neighbour did have a claim settled by insurers but I can only deal with the evidence I have in relation to Mr and Mrs M's property.

There was also some discussion about internal damage but Mr and Mrs M didn't want that included as part of their complaint.

my final decision

I don't uphold this complaint.

I make no award against Royal & Sun Alliance Insurance Plc.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr and Mrs M to accept or reject my decision before 26 October 2015.

John Quinlan
ombudsman